

SIX SEMESTER		
Law-542: Bhartiya Nagrik Suraksha Sanhita (BNSS)		PAPER – I

UNIT – I

1. Introduction and importance of Bharatiya Nagrik Suraksha Sanhita, 2023
2. Hierarchy of Criminal Courts,
3. Definitions: Cognizable and Non-cognizable offence, Bailable and Non-Bailable offence, Complaint, First information's report, Investigation inquiry, Trial, Summons cases, Warrant case, Charge, Compoundable and Non-compoundable, Bail, Bond.
4. Arrest of persons and rights of arrested person.
5. Search and seizure.
6. Security for keeping peace and for good behavior(ss 125-143).

UNIT – II

1. Maintenance of wife etc. (sec144 -147).
2. Urgent cases of apprehended danger (section 163).
3. Disputes as to immovable property (sections 164 to 167).
4. Information to the police and their powers to investigate (sections 173-196.)
5. Protection of Witnesses.

UNIT – III

1. Jurisdictions of the criminal courts in inquiries and trials (section 197_209)
2. Limitations on taking cognizance by courts.
3. Content of Charge, effect of error and alteration and joinder of charges (sec 234- 247).
4. Bail, Anticipatory bail.
5. Cognizance of Offence, Limitation for taking cognizance.

UNIT – IV

1. Trial before Session's Court.
2. Warrant Trial before magistrate.
3. Summons Trial and Summary Trial.
4. Plea Bargaining.
5. Appeals and Inherent power of High Courts.

Law-543: Land Law	:	PAPER – II
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Unit – I

Uttar Pradesh Revenue Code 2006 (U.P. A ct No. 8 of 2012)

- (i) Objects and reasons of U.P. Land Revenue Code 2006.
- (ii) Some Important concepts (definition: Abadi, Grove Land, Gaon Fund and Gram Sabha, Taungya Plantation, Bhumi Prabhandhak Samiti etc.)
- (iii)Revenue Officer and Revenue Government.
- (iv)Board of Revenue.

Unit – II

1. Bondaries and Boundary marks (Boundary marks and Boundary dispute).
2. Record of Rights, Distinctions of Khasara and Khatauni, Mutation, Correction Proceeding, Kisan Bahi.
3. Composition and Function of Bhumi Prabandhak Samiti.
4. Existing Land Tenure System (Bhumidhar with transferable rights, Bhumidhar with nontransferable rights, Asami and Government Lessee).

Unit – III

1. Rights of various tenure holders, including their right to mortgage and lease.
2. Rules of Transfer for SC and ST Tenure Holders
3. Succession of Male Tenure holders
4. Succession of Female tenure holder
5. Wasiyat

Unit – IV

1. Ejectment of Trespasser and effect of non-ejectment
2. Surrender and Abandonment
3. Right of Division
4. Revenue and Rent
5. Land Revenue and procedure for realization of arrears of land revenue.

Law-544: Drafting Pleading and Conveyancing	:	PAPER – III
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Unit – I

1. **Drafting: General principle of drafting and relevant substantive rules.**

Unit – II

2. **Pleading:**

- (i) Fundamental rules of pleadings.
- (ii) Functions, importance and objects of pleadings.
- (iii) Alternative and inconsistent pleadings.
- (iv) Variance between pleading and proof.
- (v) Amendment of pleadings.
- (vi) Parties to suit, Joinder, Misjoinder and Non-joinder of parties, Addition, Striking out and substitution of parties, Representative suits.

Unit – III

1. Frame of suit, Cause of action, Rules relating cause of action, Joinder of causes of action, Rules relating to recovery of immovable property or heir, Misjoinder of causes of action.

Plaint:

- (i) Essential parts of plaint, Presentation and rejection of plaint.

Written Statement:

- (ii) Essentials of written statement, Rules and exceptions as to denials, Set-off and counter claim, Consequences of Non-filing of a written statement.

Unit – IV

1. **Conveyancing:**

- (i) Drafting of different types of civil plaint and written statement. (ii) Affidavit, Execution petition, Memorandum of appeal and revision.
2. **Criminal:** Drafting of complaints and bail application.
 3. **Conveyancing:** Component parts of a deed, Sale deed, Mortgage deeds, Lease deed, Gift deed and wills.

Law-545: Professional Ethics	:	PAPER – IV
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Unit – I

1. History of law Profession and importance and contribution of law profession.
2. Meaning, Nature and need of ethics of legal profession.

Duties of an advocate:

1. Duties of advocate to the court.
2. Duties of advocate to the clients.
3. Duties of advocate to the society.
4. Duties of advocate to the colleagues.
5. Enrollment of advocates and establishment of Bar Councils.

Unit – II

Punishment for professional or other misconduct:

1. (i) Meaning of professional or other misconduct. (ii) Nature and extent of punishment (iii) Remedies against the order of punishment. (iv) Remedies against the order of punishment.

Leading Cases:

2. (i) Prahlad Saran Gupta v. Bar Council of India (ii) Hikmat Ali v. Ishwar Prasad Arya and others (iii) P.D. Gupta v. Ram Murit and others Profession Ethics Bench Bar relations and aptitude of advocates.

Unit – III

Meaning and categories of contempt of court:

1. Essentials of civil contempt.
2. Essentials of criminal contempt.
3. Object and importance of contempt law.
4. Contempt jurisdiction of the subordinate courts.
5. Nature and extent of punishment for contempt of court.
6. Defence open to the contemnor in criminal contempt.
7. Defense open to the contemnor in civil contempt.
8. Remedies against the punishment for contempt of court.

Unit – IV

Important cases on contempt of court:

1. (i) Delhi judicial services association v. State of Gujarat (AIR 1995 SC 2176) (ii) In re Vinay Chandra Mishra (AIR 1995 SC 2348) (iii) Supreme Court Bar Association v. Union of India (AIR 1998 SC 1895) (iv) State of Rajasthan v. Prakash Chand (AIR) 1998 SC 1344).
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Law-546: Moot Court Exercise and Internship	:	PAPER – V
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Unit – I

Moot Court, Pre-Trial Preparation and participation in Trial System Written Examination:

1. Meaning and importance of moot court.
2. Difference between moot court and court.

Unit – II

1. Art of interviewing the client (interviewing technique).
2. Art of Cross-examination and argument.
3. Hierarchy of courts and their jurisdiction.

Unit – III

1. Writ and drafting of writ petitions.
2. Procedure followed before CAT/District consumer forums, Consumer Redressal Agencies ie National Commission, State Commission, District Forum .

Unit – IV

1. Framing of charge, plaint and written statements.
2. Preparation of case and argument.
3. Art of Lawyering

Moot Court Filed Work & Cases:

1. Every student will attend two Moot Courts on the problems assigned. He will also attend one civil and one criminal trial. He will enter in the note books prepared by him, the various steps observed during his attendance on different days in courts assigned. The procedural aspects of law should be emphasized. The book will be sign by the teacher in charge under whose supervision the candidate visits the court.
2. Each student will have to attend two interview sessions of clients at the Lawyer's Office/Legal Aid office and record the proceedings in the notebook. In awarding marks special importance will be given to the interviewing technique. The notebook will be sign by the teacher in charge under whose supervision the students attend the Lawyers Office/Legal Aid Office.
3. Each student will observe the preparation of documents and court's papers by the advocate and procedure for filing of the suit or petition. This will be recorded in the notebook. The notebook will be sign by the teacher in charge.

Mode of Evaluation Of Fieldwork & Class Work:

1. The departmental committee of the Law Department dated 28.02.2011 provides following guidelines to further clarify the award of marks in the examination of LL.B. III year, Paper – VII.
2. Roll Nos. on moot court copies shall be the same roll no. as provided by the Controller of Examination.

3. Moot Court copies are to be deposited in respective units at the time of Viva-Voce Examination. It shall be the duty of respective units to send the copies to the Controller of Examination under a sealed cover on those same days or latest by next days.
4. The break up of the award of marks in the moot court shall be as under.

Nature of examination

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|------------------------------|-----------|
| 1. Written examination | Mark – 60 |
| 2. Field work and Class work | Mark – 40 |

Moot Court copies:

1. Participation in moot courts.
2. Court visit (one visit and one criminal trial).
3. Participation in interview session of clients at lawyer's office.
4. Preparation of documents and court papers including procedure for filing of vsit and petition (each papers relating to moot court shall be signed by the teachers in charge).

Law-547: IPR – II	:	PAPER – VI
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Unit – I

1. History and scope of Copyright Law; and Copyright Act, 1957:

- (i) History of Copyright Law
- (ii) Neighbouring Rights and their protection under Copyright Law.
- (iii) Essentials of Copyright: Originality and other factors.
- (iv) Rights of Copyright Owner.
- (v) Subject matter of Copyright.
- (vi) Exploitation of Copyright.
- (vii) Registrar of Copyrights, and Copyright Board
- (viii) Infringement of Copyright: Substantial Taking and Boot-legging.
- (ix) Defences: Fair Use and other factors
- (x) Remedies
- (xi) Moral/ Special Rights of Author
- (xii) A nton Piller Orders

Unit – II

1. Developments related to IPR:

- (i) Evolution and Growth of IPRs: Paris Convention, Berne Convention, Rome Convention (ii) Global Scenario of IPR Protection: World Intellectual Property Organization (WIPO), World Trade Organization (WTO), Agreement on Trade Related Aspects of IPR (TRIPs) (iii) Indian IPR Regime: An Overview

Unit – III

2. Salient features of IPR related other enactments in India:

- (i) Geographical Indication of Goods (Registration and Protection) Act, 1999: Definition, process of registration, and infringement of Geographical Indications; Defences and remedies. (ii) Protection of Plant Varieties and Farmer's Rights Act, 2001: Plant Varieties and their registration, Criteria of Registration: Novelty, Distinction, and Stability; Essentially Derived Varieties, Farmer's Rights, Plant Varieties and Farmer's Rights Authority, National Register of Plant Varieties. (iii) Semiconductor Integrated Circuits Layout Designs Act, 2000: Meaning and Registration of Layout Design, Exploitation of Layout Designs, Appellate Board for Layout Designs, Infringement and remedies (iv) Biological Diversity Act, 2002: Meaning of Biological Diversity, Access to Biological Diversity, National Biodiversity Authority, State Biodiversity Board, Biodiversity Management -Committees, Offences and Punishments.

Unit – IV

1. Emerging IPRs:

- (i) Character Merchandising (ii) Franchising (iii) Confidential Information: Criteria of Confidentiality, Breach of Confidentiality and Defences with regard thereto, Spring-Board Doctrine. (iv) Traditional Knowledge: Brief saga of Global and Indian efforts for Protection of TK (v) Traditional Knowledge Digital Library (TKDL).